

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SAMUEL BROOKS,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, THE POLICE DEPARTMENT
OF THE CITY OF NEW YORK, PO RODRIGUEZ BADGE
NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO
JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN,

Defendants.
-----X

Plaintiff, **SAMUEL BROOKS**, complaining of the defendants, by **HARNICK & HARNICK, PC**, his attorneys, alleges upon information and belief:

**FOR A FIRST SEPARATE AND DISTINCT CAUSE OF ACTION ON
BEHALF OF PLAINTIFF, SAMUEL BROOKS FOR FALSE
IMPRISONMENT**

FIRST: That at all the times mentioned herein, the defendant, The City of New York (hereinafter referred to as "The City"), was and still is a domestic municipal corporation.

SECOND: That at all the times mentioned herein, the defendant, The Police Department of The City of New York, (hereinafter referred to as "The Police Department"), was and still is a domestic municipal corporation.

THIRD: That at all times mentioned herein, the defendant, The City owned, operated, maintained, and controlled the defendant, The Police Department.

FOURTH: That on September 28th, 2023, plaintiff duly filed with defendant, The City of New York a verified notice of claim setting forth the time and place where the accident, which is the subject of this lawsuit, occurred, the nature and extent of the injuries, the damages sustained, and the amount claimed.

FIFTH: That prior to the commencement of this action, on or about the 28th day of September 2023, and within ninety days after plaintiff's cause of action arose, plaintiff caused to be served upon the defendants by its duly authorized officer, a verified Notice of Claim containing all of the data required by the statute in such cases made and provided.

SIXTH: More than thirty (30) days have elapsed since the presentation of said claim, and the defendant, The City of New York, has failed to adjust and/or dispose of the claim presented therein.

SEVENTH: That on December 21st, 2023, a 50-H hearing was held.

EIGHTH: That this cause of action is commenced within one year and ninety days after same arose.

NINTH: That on or about 7/2/23 the defendants, The City and The Police Department as well as their agents' servants and or employees including but not limited to defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN individually, and severally, acting within their scope of employment maliciously, wrongfully, unlawfully, improperly, and without probable cause and without any basis in law or fact, falsely swore a criminal complaint against the plaintiff, in order to effect the false forcible, and unlawful arrest and imprisonment of said plaintiff.

TENTH: That on or about 7/2/23, the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN individually and severally and/or other agents servants and/ or employees of the defendants, The City and The Police Department wrongfully, unlawfully and without warrant or other legal process arrested the plaintiff, SAMUEL BROOKS against his

will at the situs of the arrest, outside 4705 Church Avenue County of Kings, City and State of New York.

ELEVENTH: That on or about the 2nd of July 2023, the plaintiff, SAMUEL BROOKS was forcibly restrained, imprisoned and detained by the defendants, The City, and The Police Department, as well as their agents, servants and or employees including but not limited to the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN was subjected to being physically assaulted, and forcibly restrained, and placed in handcuffs without having his Miranda rights read to him or informed of what he was being charged with, and was unlawfully charged with the crime of **PL 240.20.01**.

TWELFTH: That on the 2nd of July 2023 the plaintiff, SAMUEL BROOKS as a result of the wanton reckless and malicious actions of the defendants, The City, and The Police Department, as well as their agents' servants and/or employees including but not limited to the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN the plaintiff, was then caused was subjected to being physically assaulted, and forcibly restrained, and placed in handcuffs without having his Miranda rights read to him or informed of what he was being charged with but eventually the plaintiff was informed of the above said charge and then released shortly thereafter.

THIRTEENTH: That after being released on the evening of 7/2/23 the plaintiff was caused to attend Criminal Court on 8/22/23 in Part SAP-D of the Criminal Court of The City of New York Kings County at which time the above said charges were dismissed and as such the plaintiff was caused due to the wanton, reckless and malicious actions of the defendants The City, and The Police Department, as well as their agents servants and/or employees

including but not limited to PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN to live in fear and with mental anguish of a potential jail sentence until the above said charges were dismissed on the abovesaid date.

FOURTEENTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents' servants and/or employees including but not limited to the defendants PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN on or about the 2nd of July 2023 amounted to wanton, reckless outrageous conduct.

FIFTEENTH: That by reason of the foregoing occurrence, the plaintiff, SAMUEL BROOKS was caused to sustain serious, severe and permanent injuries; was greatly humiliated and suffered great mental distress; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and he sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A SECOND SEPARATE AND DISTINCT CAUSE OF ACTION
FOR FALSE ARREST ON BEHALF OF PLAINTIFF, SAMUEL BROOKS**

SIXTEENTH: The plaintiff, SAMUEL BROOKS, repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "FIRST" through "FIFTEENTH" inclusive, with the same force and effect as if fully and at length herein set forth.

SEVENTEENTH: That on or about July 2nd 2023, the defendants, The City, and The Police Department, as well as their agents servants and/or employees including but not

limited to the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN were working within the scope of their employment, when without cause or provocation, they falsely arrested the plaintiff, SAMUEL BROOKS.

EIGHTEENTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents' servants and/ or employees including but not limited to the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN on July 2nd, 2023, amounted to wanton, reckless outrageous conduct.

NINETEENTH: That the injuries sustained by the plaintiff herein were caused, due to the actions of the defendants, The City, and The Police Department as well as their agents, servants and/or employees including but not limited to the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN with no actions on his part contributing in any way thereto.

TWENTIETH: That at the time of the false arrest the defendants, The City, and The Police Department as well as their agents, servants and/or employees including but not limited to defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN were acting within the scope of their employment.

TWENTY-FIRST: That by reason of the foregoing occurrence, the plaintiff, SAMUEL BROOKS was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and his sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower

courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A THIRD AND SEPARATE AND DISTINCT CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS ON BEHALF OF
PLAINTIFF SAMUEL BROOKS**

TWENTY-SECOND: That the plaintiff, SAMUEL BROOKS reiterates and re-alleges each and every allegation of the Complaint numbered "**FIRST**" through "**TWENTY-FIRST**" inclusive, with the same force and effect as if fully and at length herein set forth

TWENTY-THIRD: That on or about the 2nd of July 2023, the defendants, The City and The Police Department as well as their agents, servants and/or employees, including but not limited to defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN while in the scope of their employment did willfully and intentionally, inflict extreme emotional distress on the plaintiff, SAMUEL BROOKS at the situs of the arrest, 4705 Church Avenue in the County of Kings, City and State of New York, when they subjected him to being physically assaulted, and forcibly restrained, and placed in handcuffs without having his Miranda rights read to him or informed of what he was being charged with, and was unlawfully charged with the crime of **PL 240.20.01** and without any provocation on the part of said plaintiff.

TWENTY-FOURTH: That due to the wanton, reckless and malicious actions of the defendants The City, and The Police Department, as well as their agents servants and/or employees including but not limited to the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN on or about the 2nd of July 2023 the plaintiff was intentionally subjected to extreme emotional distress from defendants in that he was subjected to being physically assaulted, and forcibly restrained, and placed in handcuffs without having his Miranda rights

read to him or informed of what he was being charged with, and was unlawfully charged with the crimes of **PL 240.20.01 until he was released that evening** and for approximately 2 months until the charges were dismissed against him on 8/22/23 in the SAP-D PT of the Criminal Court of the City of New York County of Kings.

TWENTY-FIFTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents' servants and/or employees including but not limited to the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN on or about the 2nd day of July 2023 amounted to wanton, reckless outrageous conduct.

TWENTY-SIXTH: That at the time of the intentional infliction of emotional distress the defendants, The City, The Police Department, and their agents' servants and/or employees including but not limited to the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN were acting within the scope of their employment.

TWENTY-SEVENTH: That by reason of the foregoing occurrence, the plaintiff, SAMUEL BROOKS was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and he sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to a sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A FOURTH AND SEPARATE AND DISTINCT CAUSE
OF ACTION FOR A VIOLATION OF HIS CIVIL RIGHTS ON
BEHALF OF PLAINTIFF SAMUEL BROOKS**

TWENTY-EIGHT: That plaintiff, SAMUEL BROOKS repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "**FIRST**" through "**TWENTY-SEVENTH**" inclusive, with the same force and effect as if fully and at length herein set forth.

TWENTY-NINTH: That on or about the 2nd of July 2023, defendants The City, and The Police Department, as well as their agents' servants and/ or employees including but not limited to the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN were working within the scope of their employment, when they deprived the plaintiff of his civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances, statutes, codes and rules, including, 42 U.S.C. SECS. 1981, 1983, 1985, and 28. U.S.C. 1343.

THIRTIETH: That afore said actions of the defendants, The City, and The Police Department, as well as their agents' servants and/ or employees including but not limited to the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN herein amounted to wanton, reckless and outrageous conduct.

THIRTY-FIRST: That the injuries sustained by the plaintiff herein were caused due to the negligence of the defendants, The City, and The Police Department, as well as their agents servants and/or employees including but not limited to the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN with no actions on his part contributing in any way thereto.

THIRTY-SECOND: That at the time of the violation of his civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances, statutes, codes and rules, including, 42 U.S.C. SECS. 1981, 1983, 1985, and 28. U.S.C. 1343, the defendants, their agents, servants and/or employees were acting within the scope of their employment.

THIRTY-THIRD: That by reason of the foregoing occurrence, the plaintiff, was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and he sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A FIFTH AND SEPARATE AND DISTINCT CAUSE OF
ACTION FOR NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF PLAINTIFF SAMUEL BROOKS**

THIRTY-FOURTH: That plaintiff, repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "**FIRST**" through "**THIRTY-THIRD**" inclusive, with the same force and effect as if fully and at length herein set forth.

THIRTY-FIFTH: That on or about 7/2/23, the defendants, The City and The Police Department as well as their agents, servants and/or employees, including but not limited to defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN while in the scope of their employment did negligently, inflict extreme emotional distress on the plaintiff, at the situs of the arrest, as he was subjected to being physically assaulted, and forcibly restrained, and placed in handcuffs without having his Miranda rights read to him or informed of what he was

being charged with, and was unlawfully charged with the crimes of **PL 240.20.01** until he was released that evening and for approximately 2 months until the charges were dismissed against him on 8/22/23 in the SAP-D Part of Criminal Court of the City of New York, County of Kings.

THIRTY-SIXTH: That due to the wanton, reckless and malicious actions of the defendants The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN on 7/2/23 and while in the scope of their employment did negligently, inflict extreme emotional distress on the plaintiff, at the situs of the arrest as he was subjected to being physically assaulted, and forcibly restrained, and placed in handcuffs without having his Miranda rights read to him or informed of what he was being charged with, and was unlawfully charged with the crimes of **PL 240.20.01** while until he was released that evening and for approximately 2 months until the charges were dismissed against him on 8/22/23 in the SAP-D Part of Criminal Court of the City of New York, County of Kings.

THIRTY-SEVENTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents' servants and/or employees including but not limited to the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424 on July 2nd, 2023, amounted to wanton, reckless outrageous conduct.

THIRTY-EIGHTH: That on the 2nd of July 2023, The City and The Police Department as well as their agents, servants and/or employees, including but not limited to defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN

DOE BADGE NO. 9424. Does, were working within the scope of their employment, when they negligently caused the plaintiff to endure severe emotional distress.

THIRTY-NINTH: That the injuries sustained by the plaintiff herein were caused due to the negligence of the defendants, their agents, servants and/or employees including but not limited to PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424 with no actions on his part contributing in any way thereto.

FORTIETH: That the defendants, their agents, servants and/or employees including but not limited to PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424 actions herein amounted to wanton, reckless and outrageous conduct.

FORTY-FIRST: That at the time of the negligent infliction of emotional distress the defendants, their agents, servants and/or employees including but not limited to PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424 were acting within the scope of their employment.

FORTY-SECOND: That by reason of the foregoing occurrence, the plaintiff, was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A SIXTH AND SEPARATE AND DISTINCT CAUSE OF ACTION
FOR MALICIOUS PROSECUTION ON BEHALF OF PLAINTIFF, SAMUEL BROOKS**

FORTY-THIRD: That plaintiff, repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "FIRST" through "FORTY SECOND" inclusive, with the same force and effect as if fully and at length herein set forth.

FORTY-FOURTH: On or about the 2nd day of July 2023, The City and The Police Department as well as their agents, servants and/or employees, including but not limited to defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424, individually, and severally, maliciously and without probable cause, executed and swore to accusatory instruments: charging plaintiff with the following: **PL 240.20 01**

FORTY-FIFTH: Plaintiff, SAMUEL BROOKS was thereafter compelled to appear in the Criminal Court of the City of New York, County of New York, to defend himself against the above-described malicious, baseless, and ill-founded charges of **PL 240.20 01**.

FORTY-SIXTH: That approximately 2 months later the aforesaid charges were dismissed on 8/22/23 in SAP-D Part before the Review Judge of the Criminal Court of the City of New York, County of Kings, City and State of New York.

FORTY-SEVENTH: That by reason of the foregoing, the plaintiff, has been deprived of his liberty, subjected to ridicule, scorn and derision, damaged in his good name and reputation and subjected him to great humiliation, mental and physical distress. That as a result thereof the plaintiff has suffered compensatory damages having a present value that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction of this matter.

**FOR A SEVENTH SEPARATE AND DISTINCT
CAUSE OF ACTION FOR ASSAULT ON BEHALF OF THE PLAINTIFF
SAMUEL BROOKS**

FORTY-EIGHTH: That the Plaintiff, SAMUEL BROOKS repeats, reiterates and realleges each and every allegation of the Complaint numbered "**FIRST**" through "**FORTY-SEVENTH**" inclusive, with the same force and effect as if fully and at length herein set forth.

FORTY-NINTH: That 2nd of July 2023 the defendants, their agents, servants and/or employees of the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424 who were at the situs of the arrest did willfully and intentionally assault, strike, push, grab, the plaintiff, SAMUEL BROOKS without any provocation on the part of said plaintiff.

FIFTIETH: That at the time of the assault, the defendants, their agents, servants and/or employees, were acting within the scope of their employment.

FIFTY-FIRST: That by reason of the foregoing occurrence, the plaintiff, SAMUEL BROOKS was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and he sustained other and further expenses all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR AN EIGHTH AND SEPARATE AND DISTINCT ACTION FOR EXCESSIVE FORCE,
VARIOUS POS HEREIN NAMED JOHN DOES ON BEHALF OF PLAINTIFF SAMUEL
BROOKS**

FIFTY-SECOND: That plaintiff repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "**FIRST**" through "**FIFTY-FIRST**" inclusive, with the same force and effect as if fully and at length herein set forth.

FIFTY-THIRD: That the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424 S, used excessive force against in violation of the 4th 14th and 8th Amendments when they subjected Plaintiff to being physically assaulted, and forcibly restrained, and placed in handcuffs without having his Miranda rights read to him or informed of what he was being charged with, and unlawfully charged with the crimes of **PL 240.20.01 until he was released that evening** and for approximately 2 months until the charges were dismissed against him on 8/22/23 in the SAP-D PT of the Criminal Court of the City of New York County of Kings.

FIFTY-FOURTH: There was no legal justification for defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424 actions.

FIFTY-FIFTH: Defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424 actions were objectively unreasonable.

FIFTY-SIXTH: The actions of the Defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424 amounted to deliberate indifference to the rights of the plaintiff to be free of excessive force, unreasonable seizures under the Fourth and Fourteenth Amendments to the Constitutions of the United States as well as the applicable parts of The Constitution of the State of New York.

FIFTY-SEVENTH: The actions of the defendants, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331, PO JOHN DOE BADGE NO. 9424 amounts to unnecessary and wanton infliction of pain and arises under the Eighth Amendment to the Constitutions of the United States and the applicable parts of The Constitution of the State of New York.

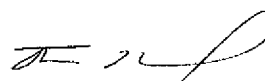
FIFTY-EIGHTH: That by reason of the foregoing excessive force, the plaintiff was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

WHEREFORE, the plaintiff demands judgment against the defendants on the First, Second, Third, Fourth, Fifth, Sixth Seventh, and Eighth Causes of Action in the sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages together with the costs and disbursements of this action.

Dated: New York, New York
February 6, 2024

Yours, etc.

HARNICK & HARNICK, P.C.



THOMAS HARNICK
Attorneys for Plaintiff
305 Broadway, Suite 602
New York, New York 10007
(212) 962-5065

VERIFICATION

STATE OF NEW YORK)

ss:

COUNTY OF NEW YORK)

The undersigned, **THOMAS HARNICK**, an attorney admitted to practice in the Courts of New York State, shows:

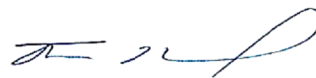
That he is a Partner in the law firm of **HARNICK AND HARNICK, P.C.** attorneys of record for the plaintiff, and personally in charge of the within action: that he has read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and knows the contents thereof; that the same is true to his own knowledge, except as to those matters therein stated to be alleged on information and belief, and as to those matters, he believes the same to be true.

The grounds of deponent's belief as to all matters not stated upon his knowledge are as follows: investigations which he has caused to be made concerning the subject matter of this action, and statements of witnesses made herein.

Deponent further says that the reason this verification is made by deponent and not by the plaintiff is because the plaintiff does not reside within the county where your deponent has his offices.

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
February 6, 2024



THOMAS HARNICK

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

INDEX NO: _____

SAMUEL BROOKS,

PLAINTIFF,

- AGAINST -

**THE CITY OF NEW YORK, THE POLICE DEPARTMENT OF THE CITY OF NEW
YORK, PO RODRIGUEZ BADGE NO. 24866, PO HOLUBENKO BADGE NO. 13331,
PO JOHN DOE BADGE NO. 9424, AND SGT. SUKHNANDAN,**

DEFENDANTS.

VERIFIED COMPLAINT

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(212) 962-5065**